

STATE OF NEW YORK

8029--A

2025-2026 Regular Sessions

IN ASSEMBLY

April 22, 2025

Introduced by M. of A. SHIMSKY -- read once and referred to the Committee on Transportation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law, in relation to the operation of traffic-control signal photo violation-monitoring devices in certain intersections in the county of Westchester

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph 1 of subdivision (a) of section 1111-g of the
2 vehicle and traffic law, as added by chapter 501 of the laws of 2023, is
3 amended to read as follows:

4 1. Notwithstanding any other provision of law, the county of Westches-
5 ter is hereby authorized and empowered to adopt and amend a local law or
6 ordinance establishing a demonstration program imposing monetary liabil-
7 ity on the owner of a vehicle for failure of an operator thereof to
8 comply with traffic-control indications in such county in accordance
9 with the provisions of this section. Such demonstration program shall
10 empower such county to install and operate traffic-control signal photo
11 violation-monitoring devices at no more than fifty intersections within
12 and under the jurisdiction of such county at any one time. Provided
13 that, in addition to the fifty intersections within and under its juris-
14 diction, such county may install and operate traffic-control signal
15 photo violation-monitoring devices at no more than one intersection
16 located on the portion of the Saw Mill River parkway within the village
17 of Pleasantville, county of Westchester, upon approval in writing
18 obtained by such county from the department of transportation, provided
19 that the department of transportation may at any time rescind or modify
20 such approval.

21 § 2. The county of Westchester and commissioner of the New York state
22 department of transportation are hereby authorized and empowered to
23 install signage giving advance notice to motor vehicle operators of the

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 presence of traffic-control signal photo violation-monitoring devices
2 operated pursuant to a demonstration program authorized by article twen-
3 ty-four of the vehicle and traffic law, in conformance with standards
4 established in the manual on uniform traffic control devices maintained
5 by the commissioner of transportation pursuant to section sixteen
6 hundred eighty of the vehicle and traffic law. Provided, however, that
7 the county of Westchester shall not place or maintain such signage on
8 the Saw Mill River parkway unless or until approval in writing has been
9 obtained from the New York state department of transportation, and such
10 department of transportation may at any time rescind or modify such
11 approval. The county of Westchester is additionally authorized to
12 design and implement a public information campaign before traffic-con-
13 trol signal photo violation-monitoring devices authorized pursuant to
14 the provisions of paragraph one of subdivision (a) of section eleven
15 hundred eleven-g of the vehicle and traffic law, as amended by section
16 one of this act, go into operation, to notify and educate motor vehicle
17 operators about such demonstration program.

18 § 3. This act shall take effect immediately; provided that the amend-
19 ments to section 1111-g of the vehicle and traffic law made by section
20 one of this act shall not affect the repeal of such provision and shall
21 be deemed repealed therewith.